

METHODS OF PROCUREMENT

It is the intent of the School Board to obtain high quality goods and services at a reasonable cost and to conduct its purchasing procedures in a fair and impartial manner without impropriety or the appearance of impropriety. The maximum feasible competition will be sought, giving all qualified vendors access to the School Board business with no offeror arbitrarily or capriciously excluded.

Pursuant to written procedures not requiring competitive sealed bids or competitive negotiation, the School Board may enter into single or term contracts for goods and services other than professional services and non-transportation-related construction, if the aggregate or the sum of all phases is not expected to exceed \$200,000; however, such small purchase procedures shall provide for competition wherever practicable. Such small purchase procedures may allow for single or term contracts for professional services without requiring competitive competition, provided the aggregate or the sum of all phases is not expected to exceed \$80,000. Where small purchase procedures are adopted for construction, the procedures shall not waive compliance with the Uniform State Building Code.

A. Small Purchases – Not Exceeding \$50,000.

1. Purchases-Not Exceeding \$5,000.00.

- a. Purchases from nongovernmental sources where the total cost is \$5,000 or less and no formal contract is in place may be made upon the receipt of one fair and reasonable price (verbal, telephone, or written) quote.
- b. Purchases may not be arbitrarily “split” to qualify under the \$5,000 limit.
- c. Procurement Cards may be used as a means of efficiency to purchase goods, which fall into the “Purchases-Not Exceeding \$5,000” category as outlined in this policy. The Procurement Card is not intended to replace the standard Purchase Order procedures but rather enable Loudoun County Public Schools (LCPS) to procure items which are not normally requisitioned in large quantities or stocked in a consumable inventory in an efficient manner. Procurement Cards are to be used in accordance with established provisions of the Virginia Public Procurement Act and School Board policy.

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2. Purchases Exceeding \$5,000 but Not More than \$50,000.

- a. Purchases exceeding \$5,000 but not more than \$50,000 with no formal contract in place will be made by solicitation of informal bids or quotations, preferably in writing, from three or more sources, if available, by the user department.
- b. Purchases may not be arbitrarily “split” to qualify under the \$50,000 limit.

B. Informal Solicitation - Purchases Exceeding \$50,000.

1. Except as otherwise provided in this Policy, procurement of goods, services, and non-transportation-related construction having an aggregate value between \$50,000 and less than \$200,000, and non-transportation-related construction with an aggregate value of less than \$300,000, shall be made directly by the Procurement Division by obtaining competitive quotes on the open-market. The Procurement Division shall solicit at least four price quotes by posting a Request for Quotes (RFQ), unless otherwise permitted by the Virginia Public Procurement Act.

2. Informal Solicitation – Professional Services exceeding \$50,000 but not more than \$80,000 with no formal contract in place shall require the written informal solicitation of a minimum of four bidders or offerors.

3. If an RFQ is issued, the Procurement Division shall post the RFQ publicly on the LCPS Procurement Division website, and/or the Commonwealth of Virginia Department of General Services’ central electronic procurement website, and/or other means.

4. The Procurement Division will seek participation from Small, Women-owned, and Minority-owned businesses (SWaM) vendors and Loudoun County businesses (if available). The user department shall submit a list of any known bidders/offerors to the Procurement Division in order to maximize competition. A record shall be kept of specifications/statement of needs, quotes solicited, quotes received, and justification for vendor selected.

C. Formal Bids and Contracts. All purchases with nongovernmental sources for goods, services, insurance, or construction, over the Small Purchase and Informal Solicitation thresholds in sections A and B above, shall be procured using competitive sealed bidding or competitive negotiation as provided in this Policy, unless otherwise authorized by law. Competitive sealed bidding or competitive negotiation shall be conducted by the Procurement Division or in the case of construction by the Construction Division. In the formal bid process the Procurement Division will work with the user

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department in the specification writing, bid analysis and award recommendation.

1. Competitive Sealed Bidding. Purchases from nongovernmental sources for goods, nonprofessional services, and insurance, where the aggregate or sum of all phases is expected to exceed \$200,000 may be made by the Procurement Division through competitive sealed bidding. Except as provided in Policy 6430 and as otherwise provided by law, non-transportation-related construction, where the aggregate or sum of all phases is expected to exceed \$300,000, and transportation-related construction where the aggregate or sum of all phases is expected to exceed \$25,000, shall be procured by the Construction Division through competitive sealed bidding.

2. Competitive Negotiations. Purchases from nongovernmental sources for goods, nonprofessional services, and insurance, where the sum of all phases is expected to exceed \$200,000, may be procured through competitive negotiation. The Procurement Division shall use competitive negotiation for the procurement of professional services that exceed \$80,000. Construction may be procured using competitive negotiation as permitted by Policy 6430 and as otherwise authorized by law.

D. Special Procurement Situations.

1. Cooperative Procurement. For the purpose of increasing efficiency and/or reducing administrative expenses, the School Board may join and participate in cooperative procurement agreements with one or more other public bodies or agencies of the United States. LCPS may participate in or purchase goods and services through contracts awarded by other governmental bodies when it is determined by the Purchasing Agent that such use is in the best interest of LCPS and the contract is based on competitive principles.

2. Sole Source Procurement. Sole source procurement may be made without formal sealed bidding or competitive negotiation on the basis of a written determination that only one source is practicably available. Notice will be posted on the LCPS website on the day the contract is awarded or the decision to award is announced, whichever occurs first.

3. Emergency Procurement. Emergency procurement may be made without formal sealed bidding or competitive negotiation with a written determination of the basis for the emergency, identification of what is being procured, the contractor selected, and the date of the contract award. Notice will be posted on the LCPS website on the day the contract is awarded or the decision to award is announced, whichever occurs first, or as soon thereafter as is practicable.

4. Public Auction. The School Board authorizes staff to purchase goods,

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products or commodities from various public auction sales in an effort to secure such items at a savings when compared to the acquisition of the same or similar new items. Such purchases shall be made if it is deemed to be in the best interest of the public to do so, within budget, and set forth in writing.

[Former Policy 4-24]

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Legal Refs: Code of Virginia, 1950, as amended, §§ 2.2-4300 et seq., 22.1-70 and 22.1-78

Cross Ref: Policy [4340](#), Purchasing Procedures; Policy [6430](#), Disposal of Surplus Personal Property